

SENATE BILL 2259

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 49, Chapter 7; Title 49, Chapter 8 and Title 49, Chapter 9, relative to public institutions of higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

Each public institution of higher education shall adopt policies to preserve the essential principles of institutional neutrality, free expression, and civil discourse, and to preserve a campus climate that allows for the free expression of all viewpoints with respect. The policies adopted pursuant to this section must be posted on the institution's website.

SECTION 2. Tennessee Code Annotated, Section 49-8-301(b), is amended by deleting subdivision (4).

SECTION 3. Tennessee Code Annotated, Section 49-8-302, is amended by deleting the section and substituting:

(a) The general assembly finds and declares that:

(1) Academic tenure serves as an important safeguard for academic freedom, the advancement of knowledge, and the protection of intellectual independence in public institutions of higher education;

(2) The safeguarding of tenure must be balanced with the responsibility of institutional leadership to ensure accountability, integrity, and appropriate professional conduct within the faculty;

(3) The processes of tenure and disciplinary action against a faculty member for cause are distinct in purpose and effect, and must remain separate to protect both academic freedom and administrative authority; and

(4) It is the intent of the general assembly to affirm that administrators of public institutions and governing boards possess clear authority to discipline or remove faculty members for cause, while preserving the independence of tenure decisions from disciplinary actions.

(b) The board of regents and each state university board shall adopt and implement policies that clearly distinguish between tenure decisions and disciplinary actions for faculty members.

(c) The policies adopted pursuant to subsection (b) must:

(1) Ensure that awarding, denial, or revocation of tenure is not used as a form of discipline;

(2) Ensure that disciplinary actions do not alter or suspend a faculty member's tenure status except as provided by institutional policy and after providing the faculty member due process;

(3) Provide disciplinary procedures that are the same for tenured and non-tenured faculty for a faculty member's misconduct;

(4) Ensure due process for a faculty member; and

(5) Comply with applicable state and federal law.

(d) The chancellor of the board of regents and the chief executive officer or chief academic officer of an institution governed by a state university board retains the authority to impose disciplinary actions, including suspension or termination for cause, on faculty members who violate institutional policies or professional standards,

regardless of whether the faculty member is tenured or non-tenured, that are consistent with the policies adopted by the governing board pursuant to subsection (b).

(e) Prior to termination or suspension based on an allegation of misconduct, a tenured or non-tenured faculty member is only entitled to a written notice of the grounds for termination or suspension and an opportunity to be heard by the institution's chief academic officer or chief executive officer. All terminations and suspensions based on an allegation of misconduct by the tenured or non-tenured faculty must be made by the institution's chief executive officer or chief academic officer without any recommendation or vote by another faculty member at the institution.

(f) This section does not limit the authority of the board of regents or a state university board to deny tenure based on performance, qualifications, or institutional needs if the decisions are made independently of any disciplinary proceedings.

SECTION 4. Tennessee Code Annotated, Section 49-8-303, is amended by deleting the section.

SECTION 5. Tennessee Code Annotated, Section 49-8-304(a), is amended by adding "prior to July 1, 2026," after "for cause".

SECTION 6. Tennessee Code Annotated, Section 49-9-209(d)(1)(H), is amended by deleting the subdivision and substituting:

(H) Have authority to adopt policies governing the granting and removal of tenure for faculty members consistent with § 49-9-108;

SECTION 7. Tennessee Code Annotated, Title 49, Chapter 9, Part 1, is amended by adding the following as a new section:

49-9-108.

(a) The general assembly finds and declares that:

(1) Academic tenure serves as an important safeguard for academic freedom, the advancement of knowledge, and the protection of intellectual independence in public institutions of higher education;

(2) The safeguarding of tenure must be balanced with the responsibility of institutional leadership to ensure accountability, integrity, and appropriate professional conduct within the faculty;

(3) The processes of tenure and disciplinary action against a faculty member for cause are distinct in purpose and effect, and must remain separate to protect both academic freedom and administrative authority; and

(4) It is the intent of the general assembly to affirm that the board of trustees of the University of Tennessee system and administrators of the institutions possess clear authority to discipline or remove faculty members for cause, while preserving the independence of tenure decisions from disciplinary actions.

(b) If the board of trustees of the University of Tennessee system adopts a policy to award tenure pursuant to § 49-9-209(d)(1)(H), then the board of trustees shall adopt and implement policies that clearly distinguish between tenure decisions and disciplinary actions for faculty members.

(c) The policies adopted pursuant to subsection (b) must:

(1) Ensure that awarding, denial, or revocation of tenure is not used as a form of discipline;

(2) Ensure that disciplinary actions do not alter or suspend a faculty member's tenure status except as provided by institutional policy and after providing the faculty member due process;

(3) Provide disciplinary procedures that are the same for tenured and non-tenured faculty for a faculty member's misconduct;

(4) Ensure due process for a faculty member; and

(5) Comply with applicable state and federal law.

(d) The chief executive officer or chief academic officer of an institution governed by the board of trustees of the University of Tennessee system retains the authority to impose disciplinary actions, including suspension or termination for cause, on faculty members who violate institutional policies or professional standards, regardless of whether the faculty member is tenured or non-tenured, that are consistent with the policies adopted by the board of trustees pursuant to subsection (b).

(e) Prior to termination or suspension based on an allegation of misconduct, a tenured or non-tenured faculty member is only entitled to a written notice of the grounds for termination or suspension and an opportunity to be heard by the institution's chief academic officer or chief executive officer. All terminations and suspensions based on an allegation of misconduct by the tenured or non-tenured faculty must be made by the institution's chief executive officer or chief academic officer without any recommendation or vote by another faculty member at the institution.

(f) This section does not limit the authority of the board of trustees to deny tenure based on performance, qualifications, or institutional needs if the decisions are made independently of any disciplinary proceedings.

SECTION 8. For purposes of adopting policies, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 academic year and each academic year thereafter.